



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 19, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202104394 (Incident Date: July 19, 2021) regarding Police Officer Elbi Martinez, Tax No. 962583 (DADS No. 2022-27344)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter, wherein CCRB substantiated a single allegation of an improper entry against Police Officer Elbi Martinez.

In this matter, Police Officer Martinez and his partner responded to a call for assistance from an ACS employee. Upon arriving at the location, Officer Martinez spoke to the ACS child protective specialist, who explained that she needed to check on the condition of the three children residing at the apartment in question, but that based on threats made against her by the mother in the past, she feared approaching the apartment without a police escort. The body-worn camera footage clearly showed the interaction that followed, including the role and location of Officer Martinez.

Officer Martinez interacted at the apartment entrance with the irate mother who answered the door. Officer Martinez repeatedly tried to calmly explain to the mother that the ACS child protective specialist needed to visually see all three of her children, but was screamed at for most of the duration of the incident. Officer Martinez placed his foot into a position to prevent the door from closing and leaned partially into the apartment hallway, maintaining a relatively safe position, which also allowed the ACS child protective specialist, who remained in the building hallway, to see the two sons who appeared inside the doorway from within the apartment. After finally being informed that the third son was not home, and was at a relative's house, and after the ACS child protective specialist stated that she would return another time to check on that third child, Officer Martinez removed his foot from the doorway and left the location.

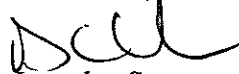
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It is apparent from the record that Officer Martinez had a good faith belief that the children inside the apartment may have been in danger, and that his minimal entry into the apartment was based completely on this exigency. This belief was supported both by the ACS child protective specialist's call for assistance and her explanation to the officers at the scene, as well as by the mother's initial refusal to cooperate and allow the children to be seen. Officer Martinez was consistently professional and respectful toward all parties, and only made the most minimal crossing of the apartment threshold that was necessary to resolve the matter safely for all parties, while ensuring that the ACS child protective specialist was able to perform her vital task.

Therefore, based on the foregoing, Police Officer Martinez will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (Prohibited Conduct – Improper Entry).

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', written over the printed name.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office